

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30				1. REQUISITION NUMBER		PAGE 1 OF 48	
2. CONTRACT NO.		3. AWARD/ EFFECTIVE DATE	4. ORDER NUMBER		5. SOLICITATION NUMBER 6923G226Q000004		6. SOLICITATION ISSUE DATE 03/11/2026
7. FOR SOLICITATION INFORMATION CALL:		a. NAME BRIAN WILEY			b. TELEPHONE NUMBER (No collect calls) 770-954-5976		8. OFFER DUE DATE/LOCAL TIME 03/24/2026 1500 ET
9. ISSUED BY US DOT MARITIME ADMINISTRATION OFFICE OF ACQUISITION MAR-380 1200 NEW JERSEY AVENUE SE MAIL STOP W-28-201 WASHINGTON DC 20590-0001				CODE 693JF7	10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☒ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) ☐ 8(A) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 237120 SIZE STANDARD: \$45		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐		13b. RATING 14. METHOD OF SOLICITATION ☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)	
15. DELIVER TO TELEPHONE NO.				CODE	16. ADMINISTERED BY See Schedule CODE 693JF7		
17a. CONTRACTOR/ OFFEROR		CODE	FACILITY CODE	18a. PAYMENT WILL BE MADE BY CODE			
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES			21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
00001	ADMINISTERED BY: US DOT MARITIME ADMINISTRATION OFFICE OF ACQUISITION MAR-380 1200 NEW JERSEY AVENUE SE MAIL STOP W-28-201 WASHINGTON DC 20590-0001 USA Period of Performance: 04/24/2026 to 04/23/2027 Remove the existing Yocum Sailing Center fuel dispensing system which includes two (2) double Continued ... (Use Reverse and/or Attach Additional Sheets as Necessary)						
25. ACCOUNTING AND APPROPRIATION DATA						26. TOTAL AWARD AMOUNT (For Government Use Only)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA						☐ ARE ☐ ARE NOT ATTACHED.	
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA						☐ ARE ☐ ARE NOT ATTACHED.	
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.					☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:		
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (Type or print)			30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (Type or print) DURBA RAY		31c. DATE SIGNED	

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	walled fiberglass underground storage tanks (UST), two (2) single product fuel dispensers, associated piping system between tanks and dispenser, associated electrical systems and install a new fuel dispensing system in a newly designated and approved area. See SOW and attachment(s) for additional details. Firm Fixed Price				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY		
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT			42a. RECEIVED BY (<i>Print</i>)	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		41c. DATE	42b. RECEIVED AT (<i>Location</i>)	
			42c. DATE REC'D (<i>YY/MM/DD</i>)	42d. TOTAL CONTAINERS

REQUEST FOR QUOTATION



SOLICITATION NUMBER: 6923G226Q000004

ISSUED: March 11, 2026

QUESTIONS DUE: March 16, 2026, at 3:00 PM East Coast Time

PROPOSALS DUE: March 24, 2026, at 3:00 PM East Coast Time

PROPOSALS VALID THROUGH: June 24, 2026

NAICS Code –237120. Total Small business set aside

FOR: Yocum Sailing Center Fuel Dispensing System; Removal and Installation at the U.S. Merchant Marine Academy (USMMA)

IMPORTANT

Read the ENTIRE solicitation and see Section L for proposal submission instructions

1. **Offerors offering less than 90 calendar days for proposal acceptance WILL NOT BE considered and WILL BE rejected.**
2. Telegraphic, telephonic, or facsimile proposals will NOT be accepted.
3. All information pertaining to this RFQ, including amendments, will be posted on-line at [SAM.gov](https://sam.gov).
4. This solicitation is issued as a **100% Total Small Business Set-aside**, pursuant to FAR Part 19.
5. **Offerors shall include all APPLICABLE Federal, State, and Local taxes in their proposal. A tax-exempt number will not be provided.**
6. Performance Bonds and Payment Bonds will be required for 100% of the total award amount.
7. All offerors are required to be registered with an active status at [SAM.gov](https://sam.gov) at the time of proposal submission. Accounts shall remain active for the entire performance period of the resulting contract.
8. Offerors shall email proposals to: usmmaproposals@dot.gov and cc durba.ray@dot.gov

SECTION A
SOLICITATION/CONTRACT FORM

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SECTION B
SUPPLIES OR SERVICES AND PRICES/COSTS

CLIN	DESCRIPTION	Quantity	Unit	TOTAL
0001	Remove the existing Yocum Sailing Center fuel dispensing system which includes two (2) double walled fiberglass underground storage tanks (UST), two (2) single product fuel dispensers, associated piping system between tanks and dispenser, associated electrical systems and install a new fuel dispensing system in a newly designated and approved area. See SOW and attachment(s) for additional details. Firm Fixed Price		\$	\$
TOTAL				\$

SECTION C
DESCRIPTION/SPECIFICATION/SOW

Yocum Sailing Center Fuel Dispensing System; Removal and Installation (SOW)

LOCATION OF WORK

- 1.0 Yocum Sailing Center and adjacent upper parking lot, located on United States Merchant Marine Academy (USMMA), 300 Steamboat Road, Kings Point, NY 11024 (see Figure 1 below).

Figure 1



ABSTRACT

- 1.0 The purpose of this work is to remove existing Yocum Sailing Center fuel dispensing system which includes two (2) double walled fiberglass (one - 2,500 gallons gasoline tank and one - 6,000 gallons diesel tank) underground storage tanks (UST); Two single product fuel dispensers, associated piping system between tanks and dispenser; and associated electrical systems.
- 2.0 Contractor shall then procure and install a new fuel dispensing system that includes two (2) double walled fiberglass (one - 2,500 gallons gasoline tank and one - 6,000 gallons diesel tank) underground storage tanks (UST) (located in the Collins Place Parking Area near Fitch Building); a new dual product fuel dispenser (located on Mallory Pier near the Salty O'Hara Landing) all new piping from the new UST tanks to the equipment they serve; and all new wiring and components associated with the operation and monitoring of the tanks. In addition, there is an additional supplemental contract line item (CLIN) to install an additional new dual product fuel dispenser. Located landside in Collins Place Parking Area lot near the new UST tank installation, to serve land base equipment.
- 3.0 Contractor's scope of work includes (but is not limited to) all labor and materials to accomplish the following:
 - All required permits and regulatory inspections required to complete work described and proper operation of all new systems.
 - All engineering and drawings required to permit and complete work described in this specification.
 - Removal/abandonment of Existing Gasoline and Diesel UST's (meets all regulatory requirements).
 - Removal/abandonment on underground piping (meets all regulatory requirements).
 - Removal/demolition of existing dispensing equipment (pump island, fuel dispensers, and etc.) associated with the old system.
 - Repair of pier structure related to existing damage (meets all regulatory requirements) to address all criteria including but not limited to environment preservation (i.e. marine and shoreline), pedestrian safety, and regulated weight capacity for equipment (usage and storage), vehicle traffic, and additions of building structures (if needed).

- Repair of surfaces (i.e. roadway) related to existing damage (meets all regulatory requirements) addressing but not limited to the incorporation of compact and asphalt to handle the required weight capacity of all utility and service vehicles (i.e. fuel tanker trucks, fire trucks, cranes). Repaired surfaces shall also meet all the requirements for safe traffic and transport.
- Removal of all remaining fuels (gasoline and diesel) from the existing fuel dispensing system (meets all regulatory requirements). The contractor shall resell the fuel for further use to the highest bidder, if it cannot be used in the new fuel dispensing system. A minimum of three (3) bids will be provided to the COR prior to final sale. The sale of the fuel oil shall be credited back to the government within the final invoice for the completion of the work.
- Electrical demolition of existing tanks, fuel dispensers and alarm systems.
- Sheeting and Excavation (meets all regulatory requirements).
- Install new 6,000 gallons double wall fiberglass diesel UST (meets all regulatory requirements).
- Install new 2,500 gallons double wall fiberglass gasoline UST (meets all regulatory requirements).
- Accomplish new or modifications to existing, floating dock to install and operate new dual fuel dispenser.
- Installation of underground /aboveground / under – dock double wall piping and components feeding floating dock fuel dispenser from new UST tanks (meets all regulatory requirements).
- Tank and pipe leak detection and alarm systems (meets all regulatory requirements).
- Dock mounted dual product (gasoline and diesel) fuel dispenser.
- Landward dual product (gasoline and diesel) fuel dispenser (supplemental CLIN item).
- Dispenser sumps, tank sumps, watertight manholes, etc.
- Concrete tank and dispenser pads and containments (meets all regulatory requirements).
- All associated electrical work to ensure proper operation of tanks, fuel dispensers, alarm systems, etc.
- Installation of marine fuel product dispenser (meets all regulatory requirements).
- Installation of marine dispensing nozzles (meets all regulatory requirements).
- Installation of reinforced hose (100ft in length and one inch inside diameter, minimum) and stainless-steel hose reels (meets all regulatory requirements).
- Disposal of all obsolete equipment and materials, as well as, any hazardous waste created by this work (in accordance with local, state and federal requirements).
- Site cleanup and restoration.

ADDITIONAL WORK REQUIREMENTS

- 1.0 Yocum Sailing Center is a contributing building within the U.S. Merchant Marine Academy National Historic District. The property was listed on the National Register of Historic Places on August 29, 2014. Therefore, all work shall be consistent with the Secretary of the Interior's Standards for the Treatment of Historic Properties (36 CFR part 68) <http://www.nps.gov/tps/standards/four-treatments/treatment-guidelines.pdf>. Additionally, all work shall meet or exceed the standards provided in the Secretary of the Interior's Standards for Rehabilitation and guidelines for applying the standards published by the National Park Service, U.S. Department of the Interior 36 CFR 67.7 - Standards for rehabilitation."
- 2.0 All work, including fuel system shut down and tag outs, required to complete this statement of work shall be coordinated with the USMMA Department of Public Works and the USMMA Environmental Protection Specialist. Points of contact to be provided to the contractor upon award of contract.
- 3.0 Contractor shall complete all work and provide all materials required by this specification in accordance with all applicable Federal, New York State, Nassau County (Nassau County Department of Health (NCDH)), and any other local regulations.
- 4.0 Contractor shall be responsible for the cost of procuring and scheduling any required permits and inspections by State, County and local regulatory agencies necessary to complete this work.

PERIOD OF PERFORMANCE AND WORK SCHEDULE GUIDELINES

- 1.0 Start Date: To be determined (Upon USMMA Contracting Officer's award of contract)
Completion Date: 90 days after award of contract.
- 2.0 Contractor may work swing and graveyard shifts throughout the contract performance period. Contractor shall notify the USMMA Contracting Officer's Representative (USMMA COR) twenty-four (24) hours in advance of their intent to work outside normal working hours (7:30am – 15:30pm).
- 3.0 Prior to start of work the contractor shall provide a detailed work plan and timeline showing the contractor's planned progression of work, including but not limited to plan development, plan approval, permitting, construction protection plan, UST tank(s) removal/abandonment, fuel dispenser removal, fuel oil piping removal/abandonment, soil testing (as required), back fill of tank

excavation (as required), new UST tank(s) installation, new piping installation, new fuel dispenser(s) installation, electrical system installation, site restoration, start dates and completion dates, etc. This will be submitted in an electronic format, using Microsoft Office products, to the USMMA COR for approval.

GENERAL WORK REQUIREMENTS

- 1.0 Contractor shall provide the services of a Professional Engineer (or equal) that is acceptable to the Nassau County Department of Health to develop all plans and permit submittals required to remove existing fuel dispensing system: UST's; fuel dispenser; obsolete piping systems; and tank/dispenser, electrical, arm/monitoring system, etc. As well as install new fuel dispensing system: UST's; fuel dispenser(s); floating pier modifications for fuel piping and fuel dispenser installation; new piping system, and tank/dispenser, electrical, alarm/monitoring system, etc. All required plans shall be submitted to and approved by the Nassau County Department of Health (or other required regulatory agencies) and the USMMA COR prior to the start of any work. Contractor shall be responsible for the submittal of all required permitting and fees to complete all work required by this specification.
- 2.0 Contractor shall be responsible for providing all labor, materials, subcontractors, disposal costs, permits, etc. (including but not limited to): tank cleaning, waste disposal, staging, temporary lighting, equipment, soil testing, back fill soil, safe for entry/hot work certificates, etc. required to complete all the requirements of this specification.
- 3.0 Contractor shall provide any personnel barriers around the work site to ensure safety of USSMA midshipmen, staff and visitors.
- 4.0 Contractor shall submit in an electronic format, using Microsoft Office products, all documentation including but not limited to; required reports, design plans, discrepancies identified, and copies of permits required to accomplish the work specified to the USMMA COR and the USMMA Environmental Protection Specialist.

EXISTING FUEL DISPENSING SYSTEM REMOVAL

- 1.0 Prior to start of any work required to removing the existing fuel dispensing system; the Contractor shall notify the USMMA Department of Public Works to tagout the fuel piping system, electrical and alarm system associated with this system. Contractor shall pump out all remaining fuels (gasoline and diesel) from the two existing tanks, piping and fuel dispenser to suitable temporary storage tank(s). The contractor shall store for further use in the new fuel dispensing system (see Figures 2 and 3 below).

Figure 2 USTs



Figure 3 Dual Fuel Dispenser



- 2.0 The contractor shall clean the existing fuel dispensing system (including tanks, piping and dispenser) until it is in a “safe for hot work” status. Contractor shall prove this condition to the satisfaction of the USMMA COR prior to the dismantling, removal and disposal of the systems components.
- 3.0 The contractor shall remove the concrete pad and any asphalt in way of removals, which lies on top of the two tanks, piping and electrical system and dispose of these materials in accordance with all state and local regulations. Contractor shall then excavate the area around the tanks and piping system as needed to remove the two tanks, saving (uncontaminated) soil to back fill the excavation area after the removal of tanks, associated piping, associated wiring and components of the existing alarm/monitoring system. Should the contractor scrap the tanks in place, they shall take all precautions to ensure that surrounding soil is not contaminated during the scrapping of the tanks.
- 4.0 Contractor shall remove the existing UST tanks, existing fuel piping and the existing UST alarm/monitoring system (wiring, components, conduit, etc.) and dispose of these materials in accordance with federal, state, county and local regulations. The fuel piping and alarm/monitoring system shall include those systems contained within Yocum Sailing Center. All piping and wiring shall be isolated and permanently sealed in accordance with state and Nassau County regulations.
- 5.0 Contractor shall remove and dispose of the dual fuel dispenser and its concrete pad as shown in Figure 3 above. Contractor shall make any required repairs to the damaged pier structure underneath the fuel dispenser and areas disturbed by the dispenser’s removal. Upon removal and structural repairs contractor shall resurface disturbed areas to match surrounding surfaces. (See above, Abstract #3 regarding roadway repairs and/or reconstruction)

SOIL SAMPLING

- 1.0 The contractor shall accomplish analytical soil testing to the satisfaction of the Nassau County Department of Health, whether or not an unauthorized release has occurred from the tanks removed. All analytical testing and reporting shall be accomplished in accordance with Federal, State and local regulations. In addition, excavated soil to be reused to backfill excavation of the tanks shall be tested to ensure its suitability for reuse.
- 2.0 Contractor shall provide analytical result reports to all required regulators, the USMMA COR and the USMMA Environmental Protection Specialist.
- 3.0 Any required soil remediation as determined by Nassau County Department of Health shall be reported to the USMMA COR immediately.
- 4.0 Any contaminated materials identified by analytical testing shall be disposed of in accordance with Federal, State and local regulations.

COMPLETION OF EXISTING FUEL DISPENSING SYSTEM REMOVAL

- 1.0 After completion of the existing fuel dispensing system (UST’s, piping, etc.) removal the contractor shall back fill the excavation area starting with previously removed soil and additional soil necessary to level the excavation site to match surrounding surfaces. The additional soil shall be of sufficient quality to allow for grass seeding or sod. USMMA will be responsible for accomplishing seeding or sodding of area.
- 2.0 Contractor shall properly address all disturbed surfaces associated with the removal of fuel oil piping and alarm/monitoring system. Disturbed areas that are painted or coated shall be cleaned, primed and coated to match the surrounding areas.

INSTALLATION OF NEW FUEL DISPENSING SYSTEM

- 1.0 Using the attached reference for guidance “Engineering Study For The Fuel Dispensing System At The Yocum Sailing Dock (prepared by Cashin Associates)”, the contractor shall engineer, obtain permitting, procure all new system components (including but not limited to): one - 2,500 gallon and one - 6,000 gallon double walled tanks UST(s); appropriate piping and components for gasoline and diesel supply; dual fuel dispenser for floating dock; electrical and alarm systems required to operate and properly test the new system.
- 2.0 Exact locations of USTs to be installed, electrical power supply tie in to be located in Collins Place Parking Area (or in an approved area within the proposed vicinity meeting the flood elevation requirements set forth in the engineering study guidance document), placement of alarm monitoring station, and placement of the floating dual fuel dispenser shall be submitted to and approved by the USMMA COR prior to any plan submittal to appropriate regulatory bodies (including Nassau County Department of Health (NCDH)). (See Figure 4 below).

Figure 4



- 3.0 Contractor shall then provide all labor and materials to install the new fuel dispensing system that meets the concept of the referenced engineering study- “Proposed Section Option, Section 3.3 New Underground Fuel Tanks in the Upper Parking Lot East of Kemp Lane” of the referenced engineering study, in accordance with all regulatory requirements.
- 4.0 Contractor shall provide all labor and materials to install the new underground /aboveground / under-dock double wall piping and components that meets the concept of the referenced engineering study- “Proposed Section Option,3.4 New Dock Fuel Dispensing Systems” to feed/supply fuel products from the USTs (gasoline and diesel) to the new floating dock dual fuel dispenser, in accordance with all regulatory requirements.

- 5.0 Contractor shall be responsible for procurement, labor and materials of any new floating dock sections and/or labor and materials to accomplish modifications existing dock sections to support the installation and operation of the new fuel dispenser, associated piping, electrical/alarm systems, etc.

TESTING

- 1.0 Contractor shall be responsible for accomplishing all required regulatory body testing for the removal of existing fuel dispensing system and components; and all testing requirements needed to initiate operation of the new fuel dispensing system and components.
- 2.0 All testing shall be scheduled and accomplished to the satisfaction of the USMMA COR, the USMMA Environmental Protection Specialist and all applicable regulatory bodies (including, but not limited to the Nassau County Department of Health).

SITE CLEANUP AND RESTORATION

- 1.0 Contractor shall be responsible for repairing, resurfacing all disturbed areas to match surrounding surfaces, related to the removal of the existing fuel dispensing system and the installation of the new fuel dispensing system.
- 2.0 Contractor shall be responsible for the proper disposal of all obsolete components and waste material related to existing system removals and new system installations. Hazardous material and waste shall be properly disposed of in accordance with all Federal, State, and local regulations. Documentation of all disposals shall be provided to the USMMA, USMMA COR and the Environmental Protection Specialist.

ADDITIONAL NOTES

- 1.0 The academy and the Waterfront operate 365 and as such disruption to the daily operation shall be limited to the best of the contractor's abilities. The academy must be immediately notified of any service and/or activity interruptions. Any potential unforeseen interruptions or issues must be immediately related to USMMA, USMMA COR and the Environmental Protection Specialist.
- 2.0 All work including but not limited to construction activities, on-site assessment(s), and document review, must be completed between normal business hours of operation (7am – 4:00pm), Monday – Friday, unless additional approval is granted by the USMMA and USMMA COR.
- 3.0 All work must be scheduled with the USMMA, USMMA COR and the Environmental Protection Specialist at five (5) business days prior to commencement.
- 4.0 A pre-bid onsite walkthrough with USMMA, USMMA COR and the Environmental Protection Specialist will be conducted to identify and mark the proposed area where removal and installations of tanks and all piping, alarms and monitoring systems will take place.
- 5.0 Contractor will provide all mandatory permits, licenses and training certificates to conduct tank work per Federal, State and local laws and regulations including but not limited to requirements set forth by EPA, DOT, DEC, OSHA and Nassau County Department of Health. A copy of the mandated permits, licenses and training certificates will be provided to the USMMA, USMMA COR and the Environmental Protection Specialist.
- 6.0 Contractor must provide a written spill prevention plan or mitigation procedure to the USMMA, USMMA COR and the Environmental Protection Specialist to address potential spill hazards that may occur throughout the project. The plan and/or procedure must meet all the requirements set forth per federal, state and local laws and regulations.
- 7.0 Contractor must protect the environment (ex. soil and waters), floor drains, storm drains, catch basins and any other drainage system opening from potential petroleum spill at all times throughout the project. Contractor will provide their own spill response containment equipment to address minor spills.
- 8.0 Any potential spill that occurs at the academy must be reported **immediately** to the USMMA, USMMA COR and the Environmental Protection Specialist. Contractors must address all spills in accordance to all Federal, State and local laws and regulations.
- 9.0 Contractor shall assume full responsibility and liability for compliance with all applicable federal, state and local regulations related to any and all aspects of the project.
10. Contractor is responsible for ensuring client satisfaction throughout the duration of the project. Any discrepancies, issues and concerns identified by the client originating from the contractor will be addressed, documented and corrected in a timely manner.

❖ **NOTE:** The contractor is responsible for any subcontractors that may be used for this project. Subcontractors are required to adhere to all the requirements set forth within this SOW.

SECTION D PACKAGING AND MARKING

This section is not applicable.

SECTION E DELIVERIES OR PERFORMANCE

F.1 PLACE OF PERFORMANCE

All work will be performed near the Yocum Waterfront Operations Building in USMMA

F.2 PERIOD OF PERFORMANCE

The Period of Performance shall be 90 days to complete the project from April 24, 2026, through July 23, 2026. May change based on the date of award. Exact date will be specified in the PO. Notice to Proceed will be issued to the contractor within 5 Calendar days after award.

Work shall be performed during normal business hours of 7:00AM-4:30PM, Monday through Friday. If the Contractor desires to work during periods other than above, the Contractor must notify the Contracting Officer (CO) five (5) working days in advance of the intention to work during other periods to allow assignment of additional inspection forces. When the CO determines that they are reasonably available, they may authorize the Contractor to perform work during periods other than normal duty hours/days. However, if inspectors are required to perform in excess of their normal duty hours/days solely for the benefit of the Contractor, the actual cost of the inspection, at overtime rates, will be charged to the Contractor and will be deducted from the final payment of the contract amount. All actions must be completed in accordance with the SOW and 90 days from the date of Notice to Proceed after award.

F.3 52.211-10 COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK (APR 1984)

The Contractor shall be required to (a) commence work under this contract within **5 calendar days** after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use in accordance with the SOW, after the date the Contractor receives the notice to proceed. The time stated for completion shall include final cleanup of the premises.

F.4 FAR 52.211-12 LIQUIDATED DAMAGES-- CONSTRUCTION (SEP 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of \$18,000.00 or 0.01% of the amount due for the last invoice payment scheduled (whichever is greater), for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

SECTION G
CONTRACT ADMINISTRATION DATA

G.1 INVOICING

DOT utilizes the Delphi eInvoicing web portal for processing invoices. Access to Delphi eInvoicing web portal is granted with electronic authentication of credentials (name & valid email address) utilizing the GSA credentialing platform login.gov. For vendors submitting invoices or payment requests, they will be required to submit invoices via the Delphi eInvoicing web portal which is authenticated via www.login.gov.

Vendors must meet the following minimum requirements to submit invoices through the Delphi eInvoicing web- portal:

- (a) Vendors shall have electronic internet access to register in the U.S. General Services Administration's (GSA) Login.gov and to the Delphi eInvoicing web portal;
- (b) The identity of system users will be verified prior to receiving access to the Delphi eInvoicing web-portal via registration with login.gov. Information required for Login.gov includes his/her email address, full name, phone number, and password;
- (c) Once notified by their agency POC, system users shall register with and create an account with GSA Login.gov. System users will provide his/her email address and receive an email back to confirm. They will then create a password and input a telephone number and opt to receive either a personal call from Login.gov or text message with an authentication code;
- (d) Once the user is authenticated in Login.gov, he/she shall work with their agency POC to request access to the Delphi eInvoicing web portal. The POC will complete a Delphi eInvoicing web- portal User Access Request (UAR) to include the users full name, contact phone number, work e- mail address. Additionally, the agency POC will include the vendor name, purchase order (contract) numbers (or supplier number) and agency doing business with to complete and electronically submit the UAR for processing;
- (e) Once the UAR is submitted, it will be electronically approved by the Access Control Officer (ACO) assigned to OA associated with the contract award or grant and then forwarded to the Delphi eInvoicing helpdesk to create the account. Once the account is created an e-mail will be generated to the user with instruction on accessing their Delphi eInvoicing web portal account. An e-mail will also be sent to the agency POC who initiated the UAR.

A. Definition.

Payment request, as used in this subpart, means a bill, voucher, invoice, or request for contract financing payment with associated supporting documentation.

B. Electronic payment requests—invoices.

- (a) Requirements. Contracts shall require the electronic submission of payment requests, except for—
 - (1) Purchases paid for with a Governmentwide commercial purchase card;
 - (2) Classified contracts or purchases when electronic submission and processing of payment requests could compromise classified information or national security; or
 - (3) As directed by the contracting officer to submit payment requests by mail.
- (b) Alternate procedures. Where a contract requires the electronic submission of invoices, the contracting officer may authorize alternate procedures only if the contracting officer makes a written determination that the Department of the Transportation (DOT) is unable to receive electronic payment requests or provide acceptance electronically and it is approved one level above the contracting officer.

For contractors/vendors who are unable to utilize DOT's Delphi eInvoicing web-portal, waivers may be considered on a case-by-case basis. Vendors should contact the Contracting Officer's Representative for assistance and reach out to the Accounts Payable department for review and approval.

(c) DOT electronic invoicing system. DOT utilizes the Delphi eInvoicing web portal to facilitate the electronic submission and approval of vendor invoices and certain grantee payment requests. Except as provided in paragraphs (a) and (b) of this section, contracting officers and DOT finance officials shall process electronic payment submissions through the Delphi eInvoicing web portal. If the requirement for electronic submission of payment requests is waived under paragraph (a) or paragraph (b) of this section, the contract or alternate payment authorization, as applicable, shall specify the form and method of payment request submission.

C. Electronic authentication.

Access to Delphi eInvoicing is granted with electronic authentication of credentials (name & valid email address) utilizing the GSA credentialing platform login.gov. For vendors submitting invoices, they will be required to submit invoices via the Delphi eInvoicing web portal which is authenticated via login.gov.

D. Contract clause.

Contracting officers shall insert the clause provided in Section E. below, Electronic Submission of Payment Requests, in solicitations and contracts exceeding the micro-purchase threshold, except those for which the contracting officer has directed or approved otherwise under Section B. above, and those paid with a Governmentwide commercial purchase card.

E. Electronic Submission of Payment Requests.

ELECTRONIC SUBMISSION OF PAYMENT REQUESTS

(a) Definitions. As used in this clause—

(1) Contract financing payment has the meaning given in FAR 32.001.

(2) Payment request means a bill, voucher, invoice, or request for contract financing payment or invoice payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), "Content of Invoices," this clause, and the applicable Payment clause included in this contract.

(3) Electronic form means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph

(c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests.

(4) Invoice payment has the meaning given in FAR 32.001.

(b) Electronic payment requests. Except as provided in paragraph (c) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Governmentwide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) The Department of Transportation utilizes the Delphi eInvoicing web-portal for processing invoices. For vendors submitting invoices, and certain grantees submitting payment requests, they will be required to submit invoices via Delphi eInvoicing which is accessed and authenticated via www.login.gov

(e) The following FAR section applies (32.905 Payment documentation and process). In order to receive payment and in accordance with the Prompt Payment Act, all invoices submitted as attachments in the Delphi eInvoicing web-portal shall contain the following:

(a) General. Payment will be based on receipt of a proper invoice and satisfactory

contract performance.

(b) Content of invoices.

(1) A PROPER INVOICE MUST INCLUDE THE FOLLOWING ITEMS (except for interim payments on cost reimbursement contracts for services):

(i) Name and address of the contractor.

(ii) Invoice date and invoice number. (Date invoices as close as possible to the date of mailing or transmission.)

(iii) Contract number or other authorization for supplies delivered or services performed (including order number and contract line item number).

(iv) Description, quantity, unit of measure, unit price and extended price of supplies delivered or services performed.

(v) Shipping and payment terms (e.g., shipment number and date of shipment, discount for prompt payment terms). Bill of lading number and weight of shipment will be shown for shipments on Government bills of lading.

(vi) Name and address of contractor official to whom payment is to be sent (must be the same as that in the contract or in a proper notice of assignment).

(vii) Name (where practicable), title, phone number and mailing address of person to notify in the event of a defective invoice.

(c) Payment system registration. All persons accessing the Delphi eInvoicing web-portal will be required to have their own unique user Delphi eInvoicing ID and password and be credentialed through login.gov.

(1) Electronic authentication. See www.login.gov for instructions. Click on the following link for instructions on establishing a login.gov account: <https://login.gov/help/creating-an-account/how-do-i-create-an-account-with-login.gov/>.

(2) To create a login.gov account, the user will need a valid email address and a working phone number. The user will create a password and then login.gov will reply with an email confirming the email address.

(3) Agency POC's will be responsible for communicating with vendor POC's to initiate the Delphi eInvoicing account creation process. Vendor POC's who will require access to the eInvoicing web-portal for invoice submission and payment tracking purposes will be required to provide their full name, valid email address, and current phone number to the agency POC to initiate the Delphi eInvoicing web-portal account. Vendor users and the agency POC will be notified via e-mail when the account is created. The vendor user will be provided detailed instructions for logging into their Delphi eInvoicing account.

(4) Training on Delphi. To facilitate use of DELPHI, comprehensive user information is available at <http://einvoice.esc.gov>

(5) Account Management. Vendors are responsible to contact the Delphi Help Desk when their firm's points of contacts will no longer be submitting invoices so they can be removed from the system. Instructions for contacting the Delphi Help Desk can be found at <http://einvoice.esc.gov>

G.2 CONTRACT ADMINISTRATION

All matters related to the contractual obligations, and general correspondence, shall be coordinated with and directed to the following persons:

Durba Ray

Contracting Officer
U.S. Department of Transportation
Maritime Administration
Office of Acquisition, MAR380
1200 New Jersey Avenue, S.E.
Washington, DC 20590
E-mail: durba.ray@dot.gov

Brian Wiley
Contract Specialist
U.S. Department of Transportation
Office of Acquisition, MAR380
1200 New Jersey Avenue, S.E.
Washington, DC 20590
E-mail: brian.wiley.ctr@dot.gov

Contractor:

TBD

G.2 TAR 1252.201-70 CONTRACTING OFFICER'S REPRESENTATIVE (NOV 2022)

(a) The Contracting Officer may designate Government personnel to act as the Contracting Officer's Representative (COR) to perform functions under the contract such as review and/or inspection and acceptance of supplies, services, including construction, and other functions of a technical nature. The Contracting Officer will provide a written notice of such designation to the Contractor within five working days after contract award or for construction, not less than five working days prior to giving the contractor the notice to proceed. The designation letter will set forth the authorities and limitations of the COR under the contract.

(b) The Contracting Officer cannot authorize the COR or any other representative to sign documents (*i.e.*, contracts, contract modifications, etc.) that require the signature of the Contracting Officer.

The Contracting Officer's Representative (COR):

TBD

Government Point of contact:

Roody S. Milord, MPH, CSP
Environmental Protection Specialist
Office of Environmental Compliance, MAR-410.1
USMMA Dept. of Transportation
516-726-6156
milordr@usmma.edu

SECTION H **SPECIAL CONTRACT REQUIREMENTS**

H.1 SUBCONTRACT DATA

The Contractor shall submit an executed Statement and Acknowledgement (Standard Form 1413), to the Contracting Officer for every subcontractor (including every subcontractor of the second or lower tier) that will be performing work at the construction site. This shall be done before the subcontractor begins work. This form provides an acknowledgement by

the subcontractor that mandatory "flow- down" contract clauses have been included in the contract in accordance with FAR Clause 52.222-11. A copy of Form SF 1413 will be given to the Contractor at time of award. Completing this form creates no contractual relationship between the subcontractor and the Government.

H.2 MODIFICATION PROPOSALS - PRICE BREAKDOWN

The Contractor shall furnish a detailed Proposal for all Contract Modification Requests (CMR's) from the Contracting Officer. All Proposals shall reach the Contracting Officer within 10 calendar days after receipt of the CMR unless otherwise directed by the Contracting Officer. The Proposal shall comprise an itemized price breakdown in sufficient detail to permit an analysis of all materials, labor, equipment, overhead and profit, at both the prime and subcontracting levels and shall cover all work involved in the modification whether such work was deleted, added or changed. In addition, if the Proposal includes a request to extend time it shall show the effect on the approved schedule. Contractor-initiated requests, for changes to the contract (other than corrective), shall be considered by the Government only if they meet all of the following conditions:

- (1) The request shall be submitted to the Contracting Officer by separate correspondence signed by an authorized representative of the Contractor.
- (2) The request shall state how the proposed change would be incorporated into the schedule; whether or not a time extension will be necessary, and the calendar date that the Contractor must receive approval or disapproval so as not to affect the existing schedule.
- (3) The request shall include a complete listing of existing labor, materials and equipment costs and proposed change as well as all indirect costs, and delays. It shall include a listing with telephone number, of all sources necessary for Government verification of costs and the Contractor's offer. The Government will reject any request that does not provide ALL of the above information in a single submission. The Contractor shall submit supporting data for claimed overhead rates to the Contracting Officer. In connection with the negotiation of any change or other modification of this contract that involves aggregate increase or decrease in costs, plus applicable profits (as explained in FAR 15.804-2), in excess of \$100,000, and that is not based on adequate price competition, established catalog or market prices of commercial items sold in substantial quantities to the general public, or prices set by law or regulation, the Contractor shall furnish cost or pricing data; and, as soon as practicable after agreement is reached on price, shall furnish a Certificate of Current Cost or Pricing Data.

H.3 PRICING OF ADJUSTMENTS

When costs are a factor in any determination of a contract price adjustment pursuant to the Changes clause or any other provision of this contract such costs shall be in accordance with the contract cost principles and procedures in Federal Acquisition Regulation Part 31.

H.4 BONDS, INSURANCE, AND GUARANTEES

FAR 52.228-15 Performance and Payment Bonds-Construction (JUN 2020)

(a) Definitions. As used in this clause-

Original contract price means the award price of the contract; or, for requirements contracts, the price payable for the estimated total quantity; or, for indefinite-quantity contracts, the price payable for the specified minimum quantity. Original contract price does not include the price of any options, except those options exercised at the time of contract award.

(b) Amount of required bonds. Unless the resulting contract price is valued at or below the threshold specified in Federal Acquisition Regulation 28.102-1(a) on the date of award of this contract, the successful offeror shall furnish performance and payment bonds to the Contracting Officer as follows:

- (1) Performance bonds (Standard Form 25). The penal amount of performance bonds at the time of contract award shall be 100 percent of the original contract price.
- (2) Payment Bonds (Standard Form 25A). The penal amount of payment bonds at the time of contract award

shall be 100 percent of the original contract price.

(3) Additional bond protection. (i) The Government may require additional performance and payment bond protection if the contract price is increased. The increase in protection generally will equal 100 percent of the increase in contract price.

(ii) The Government may secure the additional protection by directing the Contractor to increase the penal amount of the existing bond or to obtain an additional bond.

(c) Furnishing executed bonds. The Contractor shall furnish all executed bonds, including any necessary reinsurance agreements, to the Contracting Officer, within the time period specified in the Bid Guarantee provision of the solicitation, or otherwise specified by the Contracting Officer, but in any event, before starting work.

(d) Surety or other security for bonds. The bonds shall be in the form of firm commitment, supported by corporate sureties whose names appear on the list contained in Treasury Department Circular 570, individual sureties, or by other acceptable security such as postal money order, certified check, cashier's check, irrevocable letter of credit, or, in accordance with Treasury Department regulations, certain bonds or notes of the United States. Treasury Circular 570 is published in the Federal Register or may be obtained from the:

U.S. Department of the

Treasury, Financial

Management,

Service Surety Bond

Branch, 3700 East

West Highway,

Room 6 F01,

Hyattsville, MD 20782.

Or via the internet at <http://www.fms.treas.gov/c570/>.

(e) Notice of subcontractor waiver of protection (40 U.S.C. 3133(c)). Any waiver of the right to sue on the payment bond is void unless it is in writing, signed by the person whose right is waived, and executed after such person has first furnished labor or material for use in the performance of the contract.

H.5 REQUIREMENT FOR INSURANCE

In accordance with FAR 52.228-5, Insurance - Work on a Government Installation (JAN 1997), the Contractor shall furnish to the Contracting Officer a certificate of insurance, identified by contract number, as evidence of the existence of the following minimum insurance coverages. The contractor shall, at its own expense, provide at least the kinds and minimum amounts of insurance required below:

Type of Accident Comprehensive	Per Person	Coverage Per Accident	Property
General Liability		\$500,000 (aggregate for bodily injury)	\$100,000
Automobile Liability	\$200,000	\$500,000	\$20,000

Workmen's Compensation--As required by Federal and State Law.

the certificate of insurance shall also indicate that a 30-day notice of cancellation applies. Any cancellation or material change, adversely affecting the Government's interest, shall not be effective until 30 days after the

insurer or Contractor gives written notice to the Contracting Officer.

A certificate of insurance must be submitted with the proposal volume I prior to the close of the RFQ.

H.6 TAR 1252.228-74 Notification of Payment Bond Protection (NOV 2022)

(a) The prime contract is subject to the Bonds statute (historically referred to as the Miller Act) (40 U.S.C. chapter 31, subchapter III), under which the prime contractor has obtained a payment bond. This payment bond may provide certain unpaid employees, suppliers, and subcontractors a right to sue the bonding surety under the Bonds statute for amounts owned for work performed and materials delivery under the prime contract.

(b) Persons believing that they have legal remedies under the Bonds statute should consult their legal advisor regarding the proper steps to take to obtain these remedies. This notice clause does not provide any party any rights against the Federal Government, or create any relationship, contractual or otherwise, between the Federal Government and any private party.

(c) The surety which has provided the payment bond under the prime contract is: [*Contracting Officer fill-in prime contractor's surety information*]

(Name)

(Street Address)

(City, State, Zip Code)

(Contact & Tel. No.)

(d) Subcontract flowdown requirements. This clause shall be flowed down to all subcontractors. Prime contractors shall insert this notice clause in all first-tier subcontracts and shall require the clause to be subsequently flowed down by all first-tier subcontractors to all their subcontractors, at any tier. This notice contains information pertaining to the surety that provided the payment bond under the prime contract and is required to be inserted in its entirety to include the information set forth in paragraph (c).

H.7 GREEN PURCHASING

Pursuant to **Executive Order 13423, Strengthening Federal Environmental, Energy and Transportation Management, and 13514, Federal Leadership in Environmental, Energy, and Economic Performance**, the Maritime Administration promotes managing its facilities in an environmentally preferable manner that will promote the natural environment and protect the health and well-being of its Federal employees and contractor service providers. In the performance of work under this contract, the Contractor shall exert its best efforts to provide its services in a manner that will promote the natural environment and protect the health and well-being of Federal employees, contract service providers and visitors using the facility. Green purchasing or environmentally preferable contracting has several interacting initiatives which are described at the following Government or Industry Internet sites:

Recycled Products are described at <http://epa.gov/cpg>

Biobased Products are described at <http://www.biopreferred.gov/>

Energy efficient products are at <http://energystar.gov/products> for Energy Star products

Energy efficient products are at <http://www.eere.energy.gov/femp/procurement> for FEMP designated Products

Environmentally Preferable Computers are at <http://www.epeat.net> Non-Ozone Depleting Alternative

Products are at <http://www.epa.gov/ozone/strathome.html>

Water efficient plumbing products are at <http://epa.gov/watersense>

To the extent that the services provided by the Contractor require provision of any of the above types of products, the Contractor is expected to provide the environmentally preferable type of product unless that type of product is not available competitively within a reasonable time, at a reasonable price, is not life cycle cost efficient in the case of energy consuming products or does not meet reasonable performance standards.

H.8 SECURITY

The contractor shall be solely responsible for the security of its materials and equipment.

H.9 CONTRACTOR TRAINING

The Contractor shall provide a work force properly trained (and certified, if required) to perform all taskings defined within the SOW. If a tasking requires certification and/or periodic recertification, the contractor is responsible for the costs of certification and, if required, periodic recertification.

H.10 PERFORMANCE OF WORK ON GOVERNMENT PREMISES

The rules and regulations, whether in effect now or to go into effect in the future, at the premises where services are to be performed, shall apply to the Contractor and its employees while working on the premises. These regulations include, but are not limited to, presenting valid identification for entrance, smoking restrictions, obtaining and using vehicle passes for all contractor-owned and/or privately-owned vehicles, obeying posted directives, strict adherence to security and/or police directives, and safety procedures and directives.

H.11 INHERENTLY GOVERNMENTAL FUNCTIONS

Prohibition on Performing Inherently Governmental Functions - In performance of this contract, the Contractor shall not perform inherently governmental functions as defined in FAR Subpart 2.101 and prescribed in FAR Subpart 7.5. If the contractor receives a task order or other direction under the terms of the contract that it believes are inherently governmental, the contractor shall notify the CO prior to commencing work on the questioned activity.

H.12 CONTRACT SPECIFICATIONS AND DRAWINGS

Building drawings are not available for this requirement. For specification see section C- SOW.

H.13 CONSTRUCTION SITE DOCUMENTATION

Contractor shall keep all permits and other documents required to be on the job site with the Government Contracting Officer's Representative.

SECTION I CONTRACT CLAUSES

Section I CONTRACT CLAUSES

NOTE: System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

FAR PROVISIONS INCORPORATED BY REFERENCE

52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. Sep-24
52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. Jan-17
or Statements-Representation. Jan-17
52.204-14 Service Contract Reporting Requirements (Dec 2025)
52.204-90 Offeror Identification Nov-25
52.204-91 Contractor Identification Nov 25
52.204-7 System for Award Management. Nov-24
52.209-2 Prohibition on Contracting with Inverted Domestic Corporations-Representation. Nov-15
52.222-54 Employment Eligibility Verification. Jan-25
52.232-38 Submission of Electronic Funds Transfer Information with Offer. Jul-13
52.236-23, Responsibility of the Architect-Engineer Contractor Apr-84

FAR PROVISIONS INCORPORATED FULL TEXT**52.209-5 Certification Regarding Responsibility Matters. Aug-20**

(a) (1) The Offeror certifies, to the best of its knowledge and belief, that—

(i) The Offeror and/or any of its principals—

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision;

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(1) Federal taxes are considered delinquent if both of the following criteria apply:

(i) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(ii) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(2) *Examples.*

(i) The taxpayer has received a statutory notice of deficiency, under I.R.C. § 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(ii) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. § 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(iii) The taxpayer has entered into an installment agreement pursuant to I.R.C. § 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(iv) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(ii) The Offeror has ☐ has not ☐, within a three-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

This Certification Concerns a Matter Within the Jurisdiction of an Agency of the United States and the Making of a False, Fictitious, or Fraudulent Certification May Render the Maker Subject to Prosecution Under Section 1001, Title 18, United States Code.

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract

award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the certification will be considered in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror non-responsible.

(d) Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

52.209-7 Information Regarding Responsibility Matters. Oct-18

(a) *Definitions.* As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS)

is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
 - (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
 - (iii) In an administrative proceeding, a finding of fault and liability that results in—
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.
 - (iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.
- (2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).
(End of provision)

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. Feb-16

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that—

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that—

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. Feb-98

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far>.

(End of provision)

52.252-5 Authorized Deviations in Provisions. Nov-20

As prescribed in 52.107(e), insert the following provision in solicitations that include any FAR or supplemental provision with an authorized deviation. Whenever any FAR or supplemental provision is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the provision when it is used without deviation, include regulation name for any supplemental provision, except that the contracting officer shall insert "(DEVIATION)" after the date of the provision.

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Department of Transportation (DOT) *DEVIATION 2026-22 (E. O.) Executive order 14275 on Restoring Common Sense to Federal Procurement* provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

FAR CLAUSES INCORPORATED BY REFERENCE

Clause Number	Clause Title	Date
52.202-1	Definitions	Jun 2020
52.203-3	Gratuities	Apr 1984
52.203-5	Covenant Against Contingent Fees	May 2014
52.203-7	Anti-Kickback Procedures	Jun 2020
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	May 2014
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity	May 2014
52.203-12	Limitation on Payments to Influence Certain Federal Transactions	Jun 2020
52.203-14	Display of Hotline Poster(s)	Nov 2021
52.203-17	Contractor Employee Whistleblower Rights	Nov 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	Jan 2017
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	Jun 2020
52.204-13	System for Award Management Maintenance	Oct 2018
52.204-14	Service Contract Reporting Requirements	Oct 2016
52.204-19	Incorporation by Reference of Representations and Certifications	Dec 2014
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded	Jan 2025
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	Nov 2015
52.222-3	Convict Labor	Jun 2003
52.222-6	Construction Wage Rate Requirements	Aug 2018
52.222-7	Withholding of Funds	May 2014
52.222-8	Payrolls and Basic Records	Jul 2021
52.222-9	Apprentices and Trainees	Jul 2005
52.222-10	Compliance with Copeland Act Requirements	Feb 1988
52.222-11	Subcontracts (Labor Standards)	May 2014
52.222-12	Contract Termination—Debarment	May 2014
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations	May 2014
52.222-14	Disputes Concerning Labor Standards	Feb 1988
52.222-15	Certification of Eligibility	May 2014
52.222-36	Equal Opportunity for Workers with Disabilities	Jun 2020
52.222-37	Employment Reports on Veterans	Jun 2020

Clause Number	Clause Title	Date
52.222-50	Combating Trafficking in Persons	Nov 2021
52.222-54	Employment Eligibility Verification	Jan 2025
52.223-5	Pollution Prevention and Right-to-Know Information	May 2024
52.225-11	Buy American—Construction Materials under Trade Agreements	Oct 2022
52.226-7	Drug-Free Workplace	May 2024
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving	May 2024
52.227-1	Authorization and Consent	Jun 2020
52.228-1	Bid guarantee	Jan 1997
52.228-5	Insurance-Work on a Government Installation	Jan 1997
52.232-5	Payments under Fixed-Price Construction Contracts	Nov 2020
52.232-8	Discounts for Prompt Payment	Feb 2002
52.232-18	Availability of Funds	Apr 1984
52.232-25	Prompt Payment	Jan 2017
52.232-33	Payment by Electronic Funds Transfer-System for Award Management	Oct 2018
52.232-34	Payment by Electronic Funds Transfer-Other than System for Award Management	Jul 2013
52.232-35	Designation of Office for Government Receipt of Electronic Funds Transfer Information	Jul 2013
52.232-39	Unenforceability of Unauthorized Obligations	Jun 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	Mar 2023
52.233-1	Disputes	May 2014
52.233-3	Protest After Award	Aug 1996
52.233-4	Applicable Law for Breach of Contract Claim	Oct 2004
52.236-7	Permits and Responsibilities	Nov 1991
52.237-2	Protection of Government Buildings, Equipment, and Vegetation	Apr 1984
52.242-13	Bankruptcy	Jul 1995
52.242-14	Suspension of Work	Apr 1984
52.243-1	Changes-Fixed-Price	Jul 2025
52.243-7	Notification of Changes	Jul 2025
52.244-5	Competition in Subcontracting	Aug 2024
52.244-6	Subcontracts for Commercial Products and Commercial Services (Deviation Feb 2025)	Jan 2025
52.246-11	Higher-Level Contract Quality Requirement	Dec 2014
52.249-10	Default (Fixed-Price Construction)	Apr 1984
TAR 1252.204-70	Organizational and Consultant Conflicts of Interest	Nov 2022
TAR 1252.209-70	Limitation of Future Contracting	Nov 2022

52.246-4 -Inspection of services- Fixed Price. -(Aug 1996)

Clause Number	Clause Title	Date
TAR 1252.209-71	Organizational and Consultant Conflicts of Interest (Alternate)	Nov 2022
TAR 1252.211-70	Index for Specifications	Nov 2022
TAR 1252.222-72	Contractor Cooperation in Equal Employment Opportunity and Anti-Harassment Investigations	Nov 2022
TAR 1252.222-70	Strikes or Picketing Affecting Timely Completion of the Contract Work	Nov 2022
TAR 1252.222-71	Strikes or Picketing Affecting Access to a DOT Facility	Nov 2022
TAR 1252.223-70	Removal or Disposal of Hazardous Substances—Applicable Licenses and Permits	Nov 2022
TAR 1252.223-71	Accident and Fire Reporting	Nov 2022
TAR 1252.223-73	Seat Belt Use Policies and Program	Nov 2022
TAR 1252.228-74	Notification of Payment Bond Protection	Nov 2022
TAR 1252.232-70	Electronic Submission of Payment Requests	Nov 2022
TAR 1252.237-70	Qualifications of Contractor Employees	Nov 2022
TAR 1252.242-72	Dissemination of Contract Information	Nov 2022

FAR CLAUSES INCORPORATED FULL TEXT

FAR 52.212-4 Contract Terms and Conditions—Commercial Products and Commercial Services (DEC 2022)

(a) Inspection/Acceptance. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post-acceptance rights-

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(b) Assignment. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(c) Changes. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(d) Disputes. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause at Federal Acquisition

Regulation (FAR) 52.233-1, Disputes, which is incorporated herein by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(e) Definitions. The clause at FAR 52.202-1, Definitions, is incorporated herein by reference.

(f) Excusable delays. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence such as, acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.

(g) Invoice. (1) The Contractor shall submit an original invoice and three copies (or electronic invoice, if authorized) to the address designated in the contract to receive invoices. An invoice must include-

(i) Name and address of the Contractor;

(ii) Invoice date and number;

(iii) Contract number, line item number and, if applicable, the order number;

(iv) Description, quantity, unit of measure, unit price and extended price of the items delivered;

(v) Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading;

(vi) Terms of any discount for prompt payment offered;

(vii) Name and address of official to whom payment is to be sent;

(viii) Name, title, and phone number of person to notify in event of defective invoice; and

(ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision, contract clause (e.g., 52.232-33, Payment by Electronic Funds Transfer-System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer-Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(2) Invoices will be handled in accordance with the Prompt Payment Act (31 U.S.C. 3903) and Office of Management and Budget (OMB) prompt payment regulations at 5 CFR Part 1315.

(h) Patent indemnity. The Contractor shall indemnify the Government and its officers, employees and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to

infringe, any United States or foreign patent, trademark or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment.- (1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR Part 1315.

(3) Electronic Funds Transfer (EFT). If the Government makes payment by EFT, see 52.212-5(b) for the appropriate EFT clause.

(4) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(5) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) Interest. (i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) Final decisions. The Contracting Officer will issue a final decision as required by 33.211 if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see 32.607-2).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final

decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR 32.608-2 in effect on the date of this contract.

(j) Risk of loss. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon:

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) Taxes. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) Title. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) Warranty. The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(p) Limitation of liability. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) Other compliances. The Contractor shall comply with all applicable Federal, State and local laws, executive orders, rules and regulations applicable to its performance under this contract.

(r) Compliance with laws unique to Government contracts. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 18 U.S.C. 431 relating to officials not to benefit; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Fly American; and 41 U.S.C. chapter 21 relating to procurement integrity.

(s) Order of precedence. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

- (1) The schedule of supplies/services.
- (2) The Assignments, Disputes, Payments, Invoice, Other Compliances, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;
- (3) The clause at 52.212-5.
- (4) Addenda to this solicitation or contract, including any license agreements for computer software.
- (5) Solicitation provisions if this is a solicitation.
- (6) Other paragraphs of this clause.
- (7) The Standard Form 1449.
- (8) Other documents, exhibits, and attachments.
- (9) The specification.

(t) [Reserved]

(u) Unauthorized Obligations. (1) Except as stated in paragraph (u)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (u)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(v) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

52.217-8 Option to Extend Services. Nov-99

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within one week of the end of the current period of performance.

(End of clause)

52.252-2 Clauses Incorporated by Reference. Feb-98

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): <https://www.acquisition.gov/far>.

(End of clause)

52.252-6 Authorized Deviations in Clauses. Nov-20

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any provision or clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

TAR CLAUSES INCORPORATED BY REFERENCE

1252.228-74	Insurance Requirements	Nov 2022
1252.237-70	Qualifications of Offerors	Nov 2022
1252.239-86	Boundary Protection—Trusted Internet Connections	Nov 2022
1252.242-72	Contracting Officer's Technical Representative (COTR)	Nov 2022

TAR CLAUSES INCORPORATED FULL TEXT

1252.204-70 Contractor Personnel Security and Agency Nov-22

(a) *Definitions.* As used in this clause—

Agency access means access to DOT facilities, sensitive information, information systems or other DOT resources.

Applicant means a contractor employee for whom the Contractor applies for a DOT identification card.

Contractor employee means a prime contractor and subcontractor employee who requires agency access to perform work under a DOT contract.

Identification card (or "ID card") means a government issued or accepted identification card such as a Personal Identity Verification (PIV) card, a PIV-Interoperable (PIV-I) card from an authorized PIV-1 issuer, or a non-PIV card issued by DOT, or a nonPIV card issued by another Federal agency and approved by DOT. PIV and PIV-1 cards have physical and electronic attributes that other (non-PIV) ID cards do not have.

Issuing office means the DOT entity that issues identification cards to contractor employees.

Local security servicing organization means the DOT entity that provides security services to the DOT organization sponsoring the contract.

(b) *Risk and sensitivity level designations.* For contracts requiring access to DOT facilities, sensitive information, information systems or other DOT resources, contractor employees will be required to complete background investigations, identity proofing, and government identification card application procedures to determine suitability for access. DOT will assign a risk and sensitivity level designation to the overall contract and/or to contractor employee positions by category, group or individual. The risk and sensitivity level designations will be the basis for determining the level of personnel security processing required for contractor employees. The following risk and sensitivity level designations and associated level of processing are required, and each level includes the prior levels—

- (1) Low risk level: National Agency Check with Written Inquiries (NACI);
- (2) Moderate risk level: Minimum Background Investigation (MBI); and
- (3) High risk level: Background Investigation.

(c) *Security clearances.* Contractor employees may also be required to obtain security clearances (i.e., Confidential, Secret, or Top Secret). National Security work designated "special sensitive," "critical sensitive," or "non-critical sensitive," will determine the level of clearance required for contractor employees. Personnel security clearances for national security contracts in DOT will be processed according to the Department of Defense National Industrial Security Program Operating Manual (NISPOM).

(d) *Pre-screening of contractor employees.* The Contractor must pre-screen individuals designated for employment under any DOT contract by verifying minimal suitability requirements to ensure that only candidates that appear to meet such requirements are considered for contract employment, and to mitigate the burden on the Government of conducting background investigations on objectionable applicants. The Contractor must exercise due diligence in pre-screening all employees prior to submission to DOT for agency access. DOT may decline to grant agency access to a contractor employee for reasons including, but not limited to—

- (1) Conviction of a felony, a crime of violence, or a misdemeanor involving moral turpitude;
- (2) Falsification of information entered on forms or of other documents submitted;
- (3) Improper conduct including criminal, infamous, dishonest, immoral, or notoriously disgraceful conduct or other conduct adverse to the Government regardless of whether the conduct is directly related to the contract; and
- (4) Any behavior judged to pose a potential threat to DOT facilities, sensitive information, information systems or other resources.

(e) *Citizenship status.* The Contractor must monitor a non-citizen's continued authorization for employment in the United States. The Contractor must provide documentation to the Contracting Officer or the Contracting Officer's Representative (COR) during the background investigation process that validates that the E-Verify requirement has been met for each contractor employee.

(f) *Background investigation and adjudication.* A contractor employee must have a favorable adjudication of background investigation before DOT will issue an ID card to the contractor employee granting access to DOT facilities, sensitive information, information systems or other DOT resources. DOT may accept favorable adjudications of background investigations from other Federal agencies when applicants have held PIV cards issued by those agencies with no break in service. DOT may also accept PIV-I (Interoperable) cards issued by an authorized PIV-1 issuer as evidence of identity. A favorable adjudication does not preclude DOT from initiating a new investigation when deemed necessary. At a minimum, the FBI National Criminal History Check (fingerprint check) must be favorably completed before a DOT identification card can be issued. Each Contractor must use the Office of Personnel Management's (OPM) e-QIP system to complete any required investigative forms. Instructions for obtaining fingerprints will be provided by the COR or Contracting Officer. The DOT Office of Security, M-40, or a DOT organization delegated authority by M-40, is responsible for adjudicating the suitability of contractor employees.

(g) *Agency access denied.* Upon contract award, DOT will initiate the agency access procedure for all contractor employees requiring access to DOT facilities, sensitive information, information systems and other DOT resources for contract performance. DOT may deny agency access to any individual about whom an adverse

suitability determination is made. Failure to submit the required security information or to truthfully answer all questions shall constitute grounds for denial of access. The Contractor must not provide agency access to contractor employees until the COR or Contracting Officer provides notice of approval, which is authorized only by the DOT Office of Security (M-40) or a DOT organization delegated authority by M-40. Where a proposed contractor employee is denied agency access by the Government or, if for any reason a proposed application is withdrawn by the Contractor during the agency access process, the additional costs and administrative burden for conducting additional background investigations caused by a lack of effective prescreening or planning on the part of the Contractor may be considered as part of the Contractor's overall performance evaluation.

(h) *Identification card application process.* The COR will be the DOT ID card Sponsor and point of contact for the Contractor's application for a DOT ID card. The COR shall review and approve the DOT ID card application before an ID card is issued to the applicant. An applicant may be issued either a Personal Identity Verification (PIV) card that meets the standards of Homeland Presidential Security Directive (HSPD-12), or an applicant may be issued a non-PIV card. Generally, a non-PIV card will be issued for contracts that expire in six months or less, including option periods. The COR may request the issuing office to waive the six-month eligibility requirement when it is in DOT's interest for contract performance. The following applies—

- (1) PIV card. The applicant must complete a DOT on-line application for a PIV card;
- (2) Non-PIV card. The applicant must complete and submit a hard copy of Form 1681 to the COR/Sponsor; and
- (3) Regardless of the type of card to be issued (PIV or non-PIV), the applicant must appear in person to provide two forms of identity source documents in original form to DOT. The identity source documents must come from the list of acceptable documents included in Form F-9, OMB No. 1115-0136, Employment Eligibility Verification. At least one document must be a valid State or Federal government-issued picture identification. For a PIV card, the applicant may be required to appear in-person a second time for enrollment and activation.

(i) *Identification card custody and control.* The Contractor is responsible for the custody and control of all forms of government identification issued by DOT to contractor employees for access to DOT facilities, sensitive information, information systems and other DOT resources. The Contractor shall:

- (1) Provide a listing of personnel for whom an identification (ID) card is requested to the COR or PM who will provide a copy of the listing to the card issuing office. This may include Contractor and subcontractor personnel. Follow issuing office directions for submittal of an application package(s).

- (2) While visiting or performing work on a DOT facility, as specified by the issuing office, PM or COR, ensure that contractor employees prominently display their ID card.

- (3) Immediately notify the COR or, if the COR is unavailable, the Contracting Officer when a contractor employee's status changes and no longer requires agency access (e.g., employee's transfer, completion of a project, retirement, removal from work on the contract, or termination of employment) that may affect the employee's eligibility for access to the facility, sensitive information, or resources.

- (4) Promptly deliver to the issuing office: (a) all ID cards assigned to an employee who no longer requires access to the facility; and (b) all expired ID cards within five (5) days of their expiration or all cards at time of contract termination, whichever occurs first.

- (5) Immediately report any lost or stolen ID cards to the issuing office and follow its instructions.

(i) The Contractor is responsible for maintaining and safeguarding the DOT ID card upon issuance to the contractor employee. The Contractor must ensure that contractor employees comply with DOT requirements concerning the renewal, loss, theft, or damage of an ID card. The Contractor must immediately notify the COR or, if the COR is unavailable, the Contracting Officer when an ID card is lost, stolen or damaged.

(ii) Failure to comply with the requirements for custody and control of DOT ID cards may result in withholding final payment or contract termination based on the potential for serious harm caused by inappropriate access to DOT facilities, sensitive information, information systems or other DOT resources.

(iii) Specific actions and activities are required in certain events—

(A) *Renewal.* A contractor employee's DOT issued ID card is valid for a maximum of three years or until the contract expiration date (including option periods), whichever occurs first. The renewal process should begin six weeks before the PIV card expiration date. If a PIV card is not renewed before it expires, the contractor employee will be required to sign-in daily for facility access and may have limited access to information systems and other resources.

(B) *Lost/stolen.* Immediately upon detection, the Contractor or contractor employee must report a lost or stolen DOT ID card to the COR, or if the COR is unavailable, the Contracting Officer, the issuing office, or the local servicing security organization. The Contractor must submit an incident report within 48 hours, through the COR

or, if the COR is unavailable, the Contracting Officer, the issuing office, or the local security servicing organization describing the circumstances of the loss or theft. The Contractor must also report a lost or stolen PIV card through the DOT on-line registration system. If the loss or theft is reported by the Contractor to the local police, a copy of the police report must be provided to the COR or Contracting Officer. From the date of notification to DOT, the Contractor must wait three days before getting a replacement ID card. During the 3-day wait period, the contractor employee must sign in daily for facility access.

(C) Replacement. An ID card will be replaced if it is damaged, contains incorrect data, or is lost or stolen for more than 3 days, provided there is a continuing need for agency access to perform work under the contract.

(D) Surrender of ID cards. Upon notification that routine access to DOT facilities, sensitive information, information systems or other DOT resources is no longer required, the Contractor must surrender the DOT issued ID card to the COR, or if the COR is unavailable, the Contracting Officer, the issuing office, or the local security servicing organization in accordance with agency procedures.

(j) *Flow down of clause*. The Contractor is required to include this clause in any subcontracts at any tier that require the subcontractor or subcontractor's employees to have access to DOT facilities, sensitive information, information systems or other resources.

(End of clause)

1252.209-70 Organizational and Consultant Conflicts of Interest Nov-22

(a) An offeror shall identify in its proposal, quote, bid or any resulting contract, any potential or actual Organizational and Consultant Conflicts of Interest (OCCI) as described in FAR subpart 9.5. This includes actual or potential conflicts of interests of proposed subcontractors. If an offeror identifies in its proposal, quote, bid or any resulting contract, a potential or actual conflict of interests the offeror shall submit an Organizational and Consultant Conflicts of Interest Plan (OCCIP) to the contracting officer. The OCCIP shall describe how the offeror addresses potential or actual conflicts of interest and identify how they will avoid, neutralize, or mitigate present or future conflicts of interest.

(b) Offerors must consider whether their involvement and participation raises any OCCI issues, especially in the following areas when:

- (1) Providing systems engineering and technical direction.
- (2) Preparing specifications or work statements and/or objectives.
- (3) Providing evaluation services.
- (4) Obtaining access to proprietary information.

(c) If a prime contractor or subcontractor breaches any of the OCCI restrictions, or does not disclose or misrepresents any relevant facts concerning its conflict of interest, the government may take appropriate action, including terminating the contract, in addition to any remedies that may be otherwise permitted by the contract or operation of law.

(End of clause)

1252.223-71 Accident and Fire Reporting Nov-22

(a) The Contractor shall report to the Contracting Officer any accident or fire occurring at the site of the work which causes—

- (1) A fatality or as much as one lost workday on the part of any employee of the Contractor or subcontractor at any tier;
- (2) Damage of \$1,000 or more to Government-owned or leased property, either real or personal;
- (3) Damage of \$1,000 or more to Contractor or subcontractor owned or leased motor vehicles or mobile equipment; or
- (4) Damage for which a contract time extension may be requested.

(b) Accident and fire reports required by paragraph (a) of this section shall be accomplished by the following means:

- (1) Accidents or fires resulting in a death, hospitalization of five or more persons, or destruction of Government owned or leased property (either real or personal), the total value of which is estimated at \$100,000 or more, shall be reported immediately by telephone to the Contracting Officer or his/her authorized representative and shall be

confirmed in writing within 24 hours to the Contracting Officer. Such report shall state all known facts as to extent of injury and damage and as to cause of the accident or fire.

(2) Other accident and fire reports required by paragraph (a) of this section may be reported by the Contractor using a state, private insurance carrier, or Contractor accident report form which provides for the statement of—

(i) The extent of injury; and

(ii) The damage and cause of the accident or fire.

Such report shall be mailed or otherwise delivered to the Contracting Officer within 48 hours of the occurrence of the accident or fire.

(c) The Contractor shall assure compliance by subcontractors at all tiers with the requirements of this clause.

(End of clause)

1252.223-73 Seat Belt Use Policies and Programs Nov-22

In accordance with Executive Order 13043, Increasing Seat Belt Use in the United States, dated April 16, 1997, the Contractor is encouraged to adopt and enforce on-the-job seat belt use policies and programs for its employees

when operating company-owned, rented, or personally-owned vehicles. The National Highway Traffic Safety Administration (NHTSA) is responsible for providing leadership and guidance in support of this Presidential initiative. For information on how to implement such a program or for statistics on the potential benefits and cost savings to your company or organization, please visit the Click it or Ticket seat belt safety section of NHTSA's website at <https://www.nhtsa.gov/campaign/click-it-or-ticket> and <https://www.nhtsa.gov/risky-driving/seat-belts>.

(End of clause)

1252.232-70 Electronic Submission of Payment Requests. (NOV 2022) [(DEVIATION)(AUG 2025)]

(a) *Definitions.* As used in this clause—

(1) *Contract financing payment* has the meaning given in FAR 32.001.

(2) *Payment request* means a bill, voucher, invoice, or request for contract financing payment or invoice payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), “Content of Invoices,” this clause, and the applicable Payment clause included in this contract.

(3) *Electronic form* means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests.

(4) *Invoice payment* has the meaning given in FAR 32.001.

(b) *Electronic payment requests.* Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Governmentwide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) *Processing system.* The Department of Transportation utilizes the DELPHI system for processing invoices. The DELPHI module for submitting invoices is called *iSupplier*. Access to DELPHI is granted with electronic authentication of credentials (name & valid email address) utilizing the GSA credentialing platform *login.gov*. Vendors submitting invoices are required to submit invoices via *iSupplier* (DELPHI) and authenticated via *www.login.gov*.

(d) *Invoice requirements.* To receive payment and in accordance with the Prompt Payment Act, all invoices submitted as attachments in *iSupplier* (DELPHI) shall contain the following:

(1) Invoice number and invoice date.

(2) Period of performance covered by invoice.

(3) Contract number and title.

(4) Task/Delivery Order number and title (if applicable).

(5) Amount billed (by CLIN), current and cumulative.

(6) Total (\$) of billing.

(7) Cumulative total billed for all contract work to date.

(8) Name, title, phone number, and mailing address of person to be contacted in the event of a defective invoice.

(9) Travel. If the contract includes allowances for travel, all invoices which include charges pertaining to travel

expenses will catalog a breakdown of reimbursable expenses with the appropriate receipts to substantiate the travel expenses.

[(10) The following statement “The Contractor certifies that, by submitting this invoice to the Government, the supplies and/or services billed have been shipped, rendered, or delivered in accordance with instructions issued by the ordering officer; that they are reflected in the quantities and/or period of performance stated on the invoice; and that such supplies and/or services conform to the quantity and quality requirements specified in the applicable contract, order, or blanket purchase agreement. Furthermore, pursuant to Executive Order 14173, Ending Illegal Discrimination And Restoring Merit-Based Opportunity, the Contractor certifies that it is in compliance with the Equal Protection principles of the Constitution and all applicable Federal anti-discrimination laws, and acknowledges that such compliance is material to the Government’s payment decision under the False Claims Act (31 U.S.C. § 3729(b)(4)). The Contractor also affirms that it does not operate any diversity, equity, and inclusion (DEI) initiatives that are inconsistent with the Equal Protection principles of the Constitution and the non-discrimination requirements of Federal law, as interpreted by the Supreme Court in *Students for Fair Admissions v. Harvard*, 600 U.S. 181 (2023).

(e) *Payment system registration.* All persons accessing the *iSupplier* (DELPHI) will be required to have their own unique user ID and password and be credentialed through *login.gov*.

(1) *Electronic authentication.* See *www.login.gov* for instructions.

(2) To create a *www.login.gov* account, the user will need a valid email address and a working phone number. The user will create a password and then *www.login.gov* will reply with an email confirming the email address.

(3) *iSupplier* (DELPHI) registration instructions: New users should navigate to: *http://invoice.esc.gov* to establish an account. Users are required to log in to *iSupplier* (DELPHI) every 45 days to keep it active.

(4) *Training on DELPHI.* To facilitate use of DELPHI, comprehensive user information is available at *http://invoice.esc.gov*.

(5) *Account Management.* Vendors are responsible to contact their assigned COR when their firm's points of contacts will no longer be submitting invoices, so they can be removed from the system.

(f) *Waivers.* For contractors/vendors who are unable to utilize DOT's DELPHI system, waivers may be considered by DOT on a case-by-case basis. Vendors should contact their Contracting Officer's Representative (COR) for procedures.

(g) *Exceptions and alternate payment procedures.* If, based on one of the circumstances set forth in 1232.7002(a) or (b), and the contracting officer directs that payment requests be made by mail, the contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. If alternate payment procedures are authorized, the Contractor shall include a copy of the Contracting Officer's written authorization with each payment request. If DELPHI is succeeded by later technology, the Contracting Officer will supply the Contractor with the latest applicable electronic invoicing instructions.

(End of clause)

1252.239-91 Records Management Nov-22

(a) *Definition.*

Federal record, as defined in 44 U.S.C. 3301, means all recorded information, regardless of form or characteristics, made or received by a Federal agency under Federal law or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the United States Government or because of the informational value of data in them. The term Federal record:

(1) Includes all DOT records.

(2) Does not include personal materials.

(3) Applies to records created, received, or maintained by Contractors pursuant to a DOT contract.

(4) May include deliverables and documentation associated with deliverables.

(b) *Requirements.*

(1) *Compliance.* Contractor shall comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to 44 U.S.C. chapters 21, 29, 31, and 33, NARA regulations at 36 CFR chapter XII, subchapter B, and those policies associated with the safeguarding of records covered by Privacy Act of 1974 (5 U.S.C. 552a). These policies

include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.

(2) *Applicability.* In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under, the legal control of the Government, are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended. Such Federal records shall be managed and scheduled for disposition only as permitted by the Federal Records Act, other relevant statutes or regulations, and DOT Order 1351.28, Departmental Records Management Policy.

(3) *Records maintenance.* While DOT records are in the Contractor's custody, the Contractor is responsible for preventing the alienation or unauthorized destruction of DOT records, including all forms of mutilation. Records may not be removed from the legal custody of DOT or destroyed except in accordance with the provisions of the agency records schedules and with the written concurrence of the DOT or Component Records Officer, as appropriate. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal, defacing, alteration, or destruction of records, the Contractor must report the event to the Contracting Officer in accordance with 36 CFR part 1230, Unlawful or Accidental Removal, Defacing, Alteration, or Destruction of Records, for reporting to NARA.

(4) *Unauthorized disclosure.* The Contractor shall notify the Contracting Officer within two hours of discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the contract. The Contractor shall ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the Contracting Officer. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to DOT control or the Contractor must hold it until otherwise directed. Items returned to the Government shall be hand carried, mailed, emailed, or securely electronically transmitted to the Contracting Officer or address prescribed in the contract. Destruction of records is expressly prohibited unless in accordance with the contract.

(c) *Non-public information.* The Contractor shall not create or maintain any records containing any non-public DOT information that are not specifically authorized by the contract.

(d) *Rights in data.* Rights in data under this contract are set forth in clauses prescribed by FAR part 27 and included in this contract, (e.g., 52.227-14 Rights in Data—General). The Contractor must make any assertion of copyright in the data or other deliverables under this contract and substantiate such assertions. The Contractor must add or correct all limited rights, restricted rights, or copyright notices and take all other appropriate actions in accordance with the terms of this contract and the clauses included herein.

(e) *Notification of third-party access requests.* The Contractor shall notify the Contracting Officer promptly of any requests from a third party for access to Federal records, including any warrants, seizures, or subpoenas it receives, including those from another Federal, State, or local agency. The Contractor shall cooperate with the Contracting Officer to take all measures to protect Federal records, from any unauthorized disclosure.

(f) *Training.* All Contractor employees assigned to this contract who create, work with, or otherwise handle records are required to take DOT-provided records management training. The Contractor is responsible for confirming to the Contracting Officer that training, including initial training and any annual or refresher training, has been completed in accordance with agency policies.

(g) *Subcontract flowdown requirements.*

(1) The Contractor shall incorporate the substance of this clause, its terms and requirements including this paragraph (g), in all subcontracts under this contract, and require written subcontractor acknowledgment of same.

(2) Violation by a subcontractor of any provision set forth in this clause will be attributed to the Contractor.
(End of clause)

1252.239-93 Information and Communication Technology Accessibility Nov-22

(a) All Information and Communication Technology (ICT) supplies, information, documentation and

services support developed, acquired, maintained or delivered under this contract or order must comply with the Information and Communication Technology (ICT) Standards and Guidelines (*see* 36 CFR parts 1193 and 1194). Information about Section 508 is available at <https://www.section508.gov/>.

(b) The Section 508 accessibility standards applicable to this contract or order are identified in the Specification, Statement of Work, or Performance Work Statement. If it is determined by the Government that ICT supplies and services provided by the Contractor do not conform to the described accessibility standards in the contract, remediation of the supplies or services to the level of conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(c) The Section 508 accessibility standards applicable to this contract are: ____ [*Contracting Officer inserts the applicable Section 508 accessibility standards*].

(d) In the event of a modification(s) to this contract or order, which adds new ICT supplies or services or revises the type of, or specifications for, supplies or services, the Contracting Officer may require that the Contractor submit a completed Section 508 Checklist and any other additional information necessary to assist the Government in determining that the ICT supplies or services conform to Section 508 accessibility standards. If the Government determines that ICT supplies and services provided by the Contractor do not conform to the described accessibility standards in the contract, remediation of the supplies or services to the level of conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(e) If this is an indefinite-delivery type contract, a Blanket Purchase Agreement or a Basic Ordering Agreement, the task/delivery order requests that include ICT supplies or services will define the specifications and accessibility standards for the order. In those cases, the Contractor may be required to provide a completed Section 508 Checklist and any other additional information necessary to assist the Government in determining that the ICT supplies or services conform to Section 508 accessibility standards. If it is determined by the Government that ICT supplies and services provided by the Contractor do not conform to the described accessibility standards in the provided documentation, remediation of the supplies or services to the level of conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(End of clause)

Section J LIST OF ATTACHMENTS

Attachment one – Pricing Sheet.

Attachment two – Past Performance Questionnaires

Attachment three – SF-24 – Bid bond

Attachment Four – Wage determination (DBA)

Attachment Five – Wager determination (SCA)

Section K REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS

Offeror must be registered in SAM.gov, must be updated and active.

Section L: INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

L.1 FAR 52.215-1 Instructions to Offerors-Competitive Acquisition (NOV 2021)

(a) Definitions. As used in this provision-

Discussions are negotiations that occur after establishment of the competitive range that may, at the Contracting Officer's discretion, result in the offeror being allowed to revise its proposal.

In writing, "writing," or "written" means any worded or numbered expression that can be read, reproduced, and later communicated, and includes electronically transmitted and stored information.

Proposal modification is a change made to a proposal before the solicitation's closing date and time, or made in response to an amendment, or made to correct a mistake at any time before award.

Proposal revision is a change to a proposal made after the solicitation closing date, at the request of or as allowed by a Contracting Officer as the result of negotiations.

Time, if stated as a number of days, is calculated using calendar days, unless otherwise specified, and will include Saturdays, Sundays, and legal holidays. However, if the last day falls on a Saturday, Sunday, or legal holiday, then the period shall include the next working day.

(b) Amendments to solicitations. If this solicitation is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this solicitation by the date and time specified in the amendment(s).

(c) Submission, modification, revision, and withdrawal of proposals. (1) Unless other methods (e.g., electronic commerce or facsimile) are permitted in the solicitation, proposals and modifications to proposals shall be submitted in paper media in sealed envelopes or packages (i) addressed to the office specified in the solicitation, and (ii) showing the time and date specified for receipt, the solicitation number, and the name and address of the offeror. Offerors using commercial carriers should ensure that the proposal is marked on the outermost wrapper with the information in paragraphs (c)(1)(i) and (c)(1)(ii) of this provision.

(2) The first page of the proposal must show—

(i) The solicitation number;

(ii) The name, address, and telephone and facsimile numbers of the offeror (and electronic address if available);

(iii) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;

(iv) Names, titles, and telephone and facsimile numbers (and electronic addresses if available) of persons authorized to negotiate on the offeror's behalf with the Government in connection with this solicitation; and

(v) Name, title, and signature of person authorized to sign the proposal. Proposals signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(ii) Submission, modification, revision, and withdrawal of proposals. (i) Offerors are responsible for submitting proposals, and any modifications or revisions, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that proposal or revision is due. (A) Any proposal, modification, or revision received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and—

(1) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of proposals; or

(2) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(3) It is the only proposal received.

(B) However, a late modification of an otherwise successful proposal that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(iii) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the proposal wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(iv) If an emergency or unanticipated event interrupts normal Government processes so that proposals cannot be received at the office designated for receipt of proposals by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation, the time specified for receipt of proposals will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(v) Proposals may be withdrawn by written notice received at any time before award. Oral proposals in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile proposals, proposals may be withdrawn via facsimile received at any time before award, subject to the conditions specified in the provision at 52.215-5, Facsimile Proposals. Proposals may be withdrawn in person by an offeror or an authorized representative, if the identity of the person requesting withdrawal is established and the person signs a receipt for the proposal before award.

(3) Unless otherwise specified in the solicitation, the offeror may propose to provide any item or combination of items.

(4) Offerors shall submit proposals in response to this solicitation in English, unless otherwise permitted by the solicitation, and in U.S. dollars, unless the provision at FAR 52.225-17, Evaluation of Foreign Currency Offers, is included in the solicitation.

(5) Offerors may submit modifications to their proposals at any time before the solicitation closing date and time, and may submit modifications in response to an amendment, or to correct a mistake at any time before award.

(6) Offerors may submit revised proposals only if requested or allowed by the Contracting Officer.

(7) Proposals may be withdrawn at any time before award. Withdrawals are effective upon receipt of notice by the Contracting Officer.

(d) Offer expiration date. Proposals in response to this solicitation will be valid for the number of days specified on the solicitation cover sheet (unless a different period is proposed by the offeror).

(e) Restriction on disclosure and use of data. Offerors that include in their proposals data that they do not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, shall-

(1) Mark the title page with the following legend: This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed in whole or in part for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this offeror as a result of or in connection with the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [insert numbers or other identification of sheets]; and

(2) Mark each sheet of data it wishes to restrict with the following legend:

Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.

(f) Contract award. (1) The Government intends to award a contract or contracts resulting from this solicitation to the responsible offeror(s) whose proposal(s) represents the best value after evaluation in accordance with the factors and subfactors in the solicitation.

- (2) The Government may reject any or all proposals if such action is in the Government's interest.
- (3) The Government may waive informalities and minor irregularities in proposals received.
- (4) The Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a)). Therefore, the offeror's initial proposal should contain the offeror's best terms from a cost or price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.
- (5) The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the offeror specifies otherwise in the proposal.
- (6) The Government reserves the right to make multiple awards if, after considering the additional administrative costs, it is in the Government's best interest to do so.
- (7) Exchanges with offerors after receipt of a proposal do not constitute a rejection or counteroffer by the Government.
- (8) The Government may determine that a proposal is unacceptable if the prices proposed are materially unbalanced between line items or subline items. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly overstated or understated as indicated by the application of cost or price analysis techniques. A proposal may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government.
- (9) If a cost realism analysis is performed, cost realism may be considered by the source selection authority in evaluating performance or schedule risk.
- (10) A written award or acceptance of proposal mailed or otherwise furnished to the successful offeror within the time specified in the proposal shall result in a binding contract without further action by either party.
- (11) If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:
 - (i) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.
 - (ii) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror. The overall ranking of all offerors, when any ranking was developed by the agency during source selection.
 - (iii) A summary of the rationale for award.
 - (iv) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.
 - (v) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

L.2 FAR 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect

as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this address: <https://acquisition.gov/content/part-52-solicitation-provisions-and-contract-clauses#i1055741>

FAR 52.209-2 Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015)

FAR 52.225-12 Notice of Buy American Requirement-Construction Materials Under Trade Agreements (MAY 2014)

L.3 FAR 52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a Firm Fixed Price **Purchase** Order resulting from this solicitation in accordance with FAR Part 12, 22 and 36.. This requirement is a total Small Business Set aside.

L.4 FAR 52.222-5 CONSTRUCTION WAGE RATE REQUIREMENTS - SECONDARY SITE OF THE WORK (MAY 2014)

(a)(1) The offeror shall notify the Government if the offeror intends to perform work at any secondary site of the work, as defined in paragraph (a)(1)(ii) of the FAR clause at 52.222-6, Construction Wage Rate Requirements, of this solicitation. (2) If the offeror is unsure if a planned work site satisfies the criteria for a secondary site of the work, the offeror shall request a determination from the Contracting Officer.

(b)(1) If the wage determination provided by the Government for work at the primary site of the work is not applicable to the secondary site of the work, the offeror shall request a wage determination from the Contracting Officer. (2) The due date for receipt of offers will not be extended as a result of an offeror's request for a wage determination for a secondary site of the work.

L.5 INSTRUCTIONS TO OFFERORS

Any proposal received in response to this solicitation SHALL carry a 90-day acceptance period before prices need to be verified, extended or re-negotiated. All required proposal elements shall be clearly labeled.

1. Proposal Submission: The price proposal shall be supported by the technical proposal that demonstrates the offeror's understanding of the work requirements, phasing of work, and estimated time frames for ordering and installing equipment. Offerors are required to provide proposals, submitted electronically, to usmmproposals@dot.gov and cc durba.ray@dot.gov, brian.fields.ctr@dot.gov.

A complete proposal must contain the following:

- a. Offer, Standard Form (SF) 1449 front and back signed. When completing the "Offeror" portion of the SF 1449 (Blocks 30a.30b), an official having the authority to contractually bind the company must sign the SF 1449 in accordance with FAR
- b. One copy of the SF1449 is required to have an original signature. All amendments to the solicitation must be acknowledged by completing block 19 of the SF 1449.
- c. Volumes I, II, and III as described below.
- d. Attachment 3- SF 24 Bid Bond (certified)(See FAR 52.228-1 included in this solicitation). Must be submitted with the proposal
- e. Offeror must have entered current and complete data within the past year in Online Representations and Certifications at SAM.gov.
- f. FAR 52.228-5 Insurance notification (see H.5). A copy of the insurance must be submitted.

Submission of Offers.

2. Signed and dated proposal and all related proposal information shall be submitted only via email to 3durba.ray@dot.gov.

Proposal Due Date and Time: offers must be submitted no later than 3:00 P.M. EST on March 24, 2024

Proposals submitted after the time and date specified for receipt of the RFQ will be considered LATE and will not be accepted.

Questions relating to the solicitation should be submitted no later than 3:00 P.M. EST on March 16, 2026 to durba.ray@dot.gov and cc Brian.Wiley.ctr@dot.gov. All correspondence from all potential offerors sent in response to this solicitation must be clearly marked with the words: "Offered Under Solicitation#6923G226Q000004"

The Government may not provide answers to questions received after this deadline. All responses will be provided via an amendment to the solicitation on SAM.gov.

Period for acceptance of offers. The offeror agrees to hold the prices in its offer firm for 90 calendar days from the date specified for receipt of offers, unless another period is specified in an addendum to the solicitation.

3. Proposal Format

The Offeror shall submit three (3) separate Volumes (Volumes I, II, and III) which will contain information used for the purposes of the Government's evaluation for award. Price proposal must not be submitted in Volume I and Volume II.

Volume I – Technical Approach (Not to exceed 10 pages)

Volume II – Past Performance (Not to exceed 2 pages)

Volume III – Price

4. Volume I – Technical Approach (Not to exceed 10 pages)

This volume consists of the offeror's narrative addressing the technical and management approaches that will be employed under this contract. It should indicate the offeror's capabilities and the means to be used to satisfy the requirements of the requirement and must meet all minimum requirements below in section A in accordance with the Statement of Work (SOW) and the RFQ.

A. To be acceptable for factor I – Technical approach, the offerors proposal must demonstrate and meet all the following and must submit requested technical minimum requirements in accordance with the RFQ and the SOW section below:

- The offeror's proposal demonstrates that the offeror is currently (and will be until project completion) licensed and registered in NYS as a Professional Engineer (P.E) or equivalent contractor to perform the duties listed in the SOW along the waterfront including but not limited to tank demolition, excavation, tank relocation and installation, electrical work, necessary documentation acquisition and relevant regulatory documentation submission? Also provided proof of certification/license and example(s) of similar work successfully completed within the last five (5) years.
- The offeror's technical proposal demonstrates that the offeror is listed on the National Register of Historic Places, and they example of experience relevant to work meets and/or exceeds the requirements provided in the Secretary of the Interior's Standards for Rehabilitation and guidelines for applying the standards published by the National Park Service, U.S. Department of the Interior 36 CFR 67.7 - Standards for rehabilitation? Please provide example(s) of similar work successfully completed within the last five (5) years.
- A major component of the project consists of excavation of large Underground Storage Tank (USTs), soil removal, and installation of new tanks. Can the contractor provide example(s) of similar work they have

completed that demonstrates excavation, soil removal/backfill, and installation of USTs in accordance with all applicable federal, state and local law requirements? Please provide example(s) of similar work successfully completed within the last five (5) years.

- The tanks may have fuel in them at the start of the project. Can the contractor provide examples of how they managed stored product, how they safeguarded the fuel, how they allowed access to temporary stored fuel for client required activities, and how they transferred the fuel/oil into the newly developed tank system? Please provide example(s) of similar work successfully completed within the last five (5) years.
- The work involves removing two (2) existing USTs near the waterfront and relocating them to a higher flood elevation as depicted in the SOW. Environmental concerns include but are not limited to protecting the academy's stormwater infrastructure and surrounding environment (soil & Long Island Sound). Can the contractor demonstrate previous work with similar environmental concerns and how they ensured environmental compliance and integrity was maintained throughout project duration? Please provide example(s) of similar work successfully completed within the last five (5) years.
- USMMA adheres to all applicable federal, state and local laws and requirements. The academy holds various regulatory permits to meet environmental compliance. Projects may require notification and constant communication to the appropriate regulatory agencies throughout project duration. Some requirements may include document reviews, submissions and approvals. Can the contractor demonstrate instances where they regularly engaged with regulatory entities on behalf of their clients for project purposes? Please provide example(s) of similar work successfully completed within the last five (5) years.
- USMMA is the federal government's maritime academy with an active academic curriculum, frequent occupant activities (i.e. indoctrination and graduation), and ongoing capital improvement projects (CIP) to facilitate academy needs. Communication and logistical awareness must be maintained at the highest point. Offeror's proposal demonstrates instances where they provided logistical coherency with stakeholders in similar projects ensuring their client's activities were not interrupted and/or delayed. If projects were interrupted due to uncontrollable factors, can the contractor indicate how they addressed the concern(s) or resolved the problem. Please provide example(s) of similar work successfully completed within the last five (5) years.

5. Volume II - Past Performance (One example 2 pages)

The offeror must provide one example of past performance with 3 years from the date of the close of the RFQ.

The following information is required to be submitted with an offeror's past performance submission.

- Description of how the effort is similar to the work under this RFQ in regard to scope, size (dollar value) and complexity.
- One point of contact including name and telephone number or email address. Preferred points of contact are, in order of descending preference: Program Manager, Technical Manager or Engineering lead, and Administrative Contracting Officer.
- Contract number
- Name of client
- Contract type
- Project description
- Total contract value
- Period of performance (start and end date and year)

If any of the above information is missing, the offeror will be rated Unacceptable for Factor Two Past Performance.

Past performance submissions may include prime contracts and task orders. Submissions must be recent, meaning they must be either current contracts or have been completed within three (3) years from the date of the posting of this RFQ. Current contracts must have at least six (6)

months of completed performance from contract start from the date of the posting of this RFQ. Past performance will only be considered for projects where the offeror was the prime contractor.

Offerors shall provide no more than two (2) pages for the referenced project example (Total 2 pages for Past Performance).

The Offeror shall be responsible for ensuring that the customer reference (1 reference) receive, completes, and returns Attachment 2 – Past Performance Questionnaires to the Contracting Officer prior to the close of the RFQ. The completed Questionnaires shall be submitted directly via email from the customer reference to durba.ray@dot.gov; by the due date established for receipt of proposals. The Government will not accept any proposal or its supporting documentation after the close of the RFQ.

6. Volume III - Price

Offeror shall provide its proposed rates utilizing the Attachment 1- pricing spreadsheet issued with the solicitation clearly providing the break down information of the total proposed cost.

SECTION M - Evaluation Factors for Award

1. Offeror's initial proposal should contain the offeror's best terms, from a price and technical standpoint. The Government reserves the right to award this effort based on the initial proposal, as received, without discussions. If during the evaluation period, the Government determines that discussions are in its best interest, the Government may hold discussions with only those offerors determined to be in the competitive range. The Contracting Officer may eliminate offerors that no longer have a reasonable chance of selection for award.

2. EVALUATION FACTORS

A detailed and complete analysis of each offeror's proposal will be performed. The Government's evaluation will be based on the following factors and subfactors:

Factor 1: Technical Approach Factor

Factor 2: Past Performance Factor

Factor 3: Price

3. FACTOR 1 – TECHNICAL APPROACH

The Government will use Combined Technical/Risk Rating Method of evaluation based on the Evaluation rating table below: The combined technical/risk rating will be used in determining overall technical ratings in Table 1 below.

M.1. EVALUATION FACTOR ONE -TECHNICAL APPROACH

To be acceptable, offeror's proposals must meet or exceed all the requirements of the factor one section L.5.4 – Technical approach of the Solicitation (including all stated terms, conditions, representations, certifications, and all other information required by this solicitation) in accordance with the Statement of Work in section C of the solicitation. Below table 1 will be used to rate the offerors.

Table 1: Acceptable/Unacceptable

RATING	SYMBOL	DESCRIPTION
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ACCEPTABLE	A	Proposals meets or exceeds the requirements of the Solicitation (including all stated terms, conditions, representations, certifications, and all other information required by this solicitation) and the Statement of Work. Risk is low.
UNACCEPTABLE	U	Proposal did not include all the required technical factors and sub factors. Proposal did not provide information that demonstrates the ability to meet all requirements, per the solicitation and the Statement of Work. Risk is high and un-awardable.

4. FACTOR 2—PAST PERFORMANCE

To be acceptable the following information is required to be submitted with an offeror's past performance submission in accordance with RFQ Section L Instructions to the offerors, section L.5.5:

- Description of how the effort is relevant to the work under this RFQ in regard to scope, size (dollar value) and complexity.
- One point of contact including name and telephone number or email address. Preferred points of contact are, in order of descending preference: Program Manager, Technical Manager or Engineering lead, and Administrative Contracting Officer.
- Contract number
- Name of client
- Contract type
- Project description
- Total contract value
- Period of performance (start and end date and year)

If any of the above information is missing, the offeror will be rated Unacceptable for Factor Two Past Performance. The Government may consider efforts performed for agencies of the federal, state, or local governments and commercial customers when evaluating past performance. Acceptable Offeror's responsibility will be determined. **Any offeror who does not have any CPARS rating, will be rated as neutral for Past Performance.**

Government reserves the right to contact the Offeror's Government Point of Contact under the proposed example as a part of the Past Performance evaluation. The Government will review the responses to the Past Performance questionnaires directly from the offeror's point of contact provided by the offeror's reference POC as a part of the factor two-Past Performance.

5. FACTOR 3 – PRICE

The Government will evaluate the completeness of each Offeror's price proposal by assessing Attachment 1- Pricing Sheet and its proposed write up, whether the Offeror provided the required price data in sufficient detail to fully support the offer and permit the Government to evaluate the proposal thoroughly.

The Government will evaluate the reasonableness of the proposed price using comparative evaluation of quotations and or comparison to the Independent Government Cost Estimate (IGCE).

The Government will evaluate the proposed price to determine that Offeror's proposed price is valid, realistic, fair, and reasonable as well as for consistency and understanding of the SOW requirement.

The Government may reject any Offeror that is evaluated to be unrealistic in terms of program commitments, including contract terms and conditions, or unrealistically high or low in cost/price are unbalanced, such that the Offer is deemed to reflect failure to comprehend the technical requirements.

Award will be made to the Offeror found to be technically acceptable that offers the lowest total price submitted.

6. BASIS FOR CONTRACT AWARD: LOWEST PRICE TECHNICALLY ACCEPTABLE(LPTA)

Award of Firm Fixed Price Purchase Order will be made on the basis of Lowest Price Technically Acceptable (LPTA) in accordance with FAR Part 12, Part 15.102 to the technically acceptable, legally eligible, responsible Offeror, whose proposal is the lowest evaluated price and received an "Acceptable" rating overall for all technical criteria (Factor1) and determined most advantageous to the Government. Factor one -Technical Approach is of high importance and rating of "Unacceptable" for one or more technical factors (or subfactors) will result in an overall rating of "Unacceptable." The factor two will be evaluated based on Acceptable and unacceptable based on relevant scope, size and complexity. If an offeror does not have any CPARS information, will be rated as "Neutral". When both nonprice factors are combined, both are rated equal. The Government reserves the right to make award without discussions.

END OF SOLICITATION